

**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**

STATE OF COLORADO

Case No. 2007-003538

STIPULATION FOR INTERIM CESSATION OF PRACTICE

**IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
MICHAEL TODD BARTA, LPC, LICENSE NO.3099 ,**

RESPONDENT.

IT IS HEREBY STIPULATED and agreed by and between the State Board of Licensed Professional Counselors Examiners ("Board") and Michael Todd Barta, LPC ("Respondent") as follows:

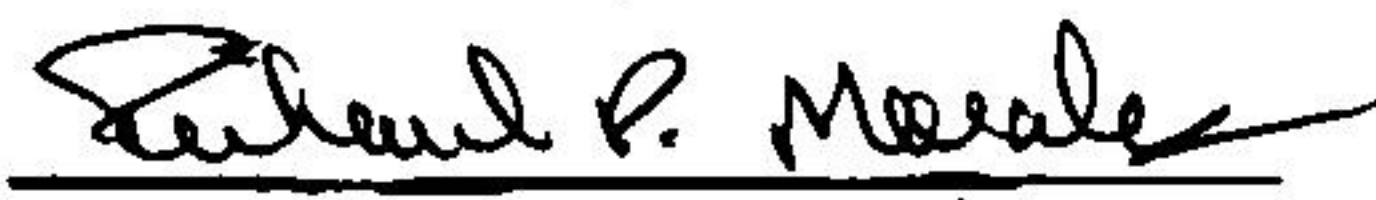
1. Respondent was issued professional counselor license number 3099, which license Respondent has held continuously since that date.
2. The Board has jurisdiction over the person of Respondent and the subject matter of this proceeding.
3. On January 18, 2008, the Board reviewed case number 2007-003538 and voted to take disciplinary action.
4. The parties have agreed to enter into this Stipulation for Interim Cessation of Practice ("Stipulation") in order to provide the Board the opportunity to consider Respondent's proposed resolution of this matter at the Board's March 21, 2008 meeting.
5. Respondent voluntarily ceased the practice of licensed professional counseling in June 2007. Respondent agrees that he will not engage in professional counseling as defined in C.R.S. § 12-43-601, (2004) or psychotherapy as defined in C.R.S. § 12-43-201(9), (2004) while this Stipulation is in effect.
6. Nothing in this Stipulation shall constitute disciplinary action or a finding that Respondent has engaged in substandard practice. The Board has made no final determinations regarding Respondent's professional competency or professional conduct. Nothing in this Stipulation shall constitute final action as defined in C.R.S. § 24-4-102(1), (2004).

7. Nothing in this Stipulation shall preclude the Board from initiating disciplinary action pursuant to C.R.S. § 12-43-222, (2004) or from issuing a Final Agency Order.
8. The terms of this Stipulation were mutually negotiated and determined.
9. Both parties acknowledge that they understand the legal consequences of this Stipulation, both parties enter into this Stipulation voluntarily, and both parties agree that no term or condition of this Stipulation is unconscionable.
10. This Stipulation and all its terms and conditions constitute a valid Board Order for purposes of C.R.S. § 12-43-222(1) (b), (2004).
11. Respondent understands that Respondent has the right to be represented by counsel of Respondent's choice in this matter, and Respondent is so represented.
12. Invalidity of any portion of this Stipulation by judgment or court order shall in no way affect any other provision, which provision shall remain in full force and effect.
13. This Stipulation shall become effective when accepted and signed on behalf of the Board. This Stipulation will remain effective through and including April 7, 2008 or until another Stipulation with the Board regarding Respondent takes effect, whichever is earlier. This Stipulation will no longer be effective if the Board files an Order of Summary Suspension and Notice of Charges
14. This Interim Stipulation shall constitute a public record but is not reportable to the National Practitioner Data Bank or to the Healthcare Integrity Protection Data Bank.

RESPONDENT


MICHAEL TODD BARTA, LPC

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**


David DeChant, Program Director
Board of Licensed Professional Counselor
Examiners

Effective Date: This 11 day of

March 2008

Mar. 10. 2008 8:53AM

No. 4420 P. 5

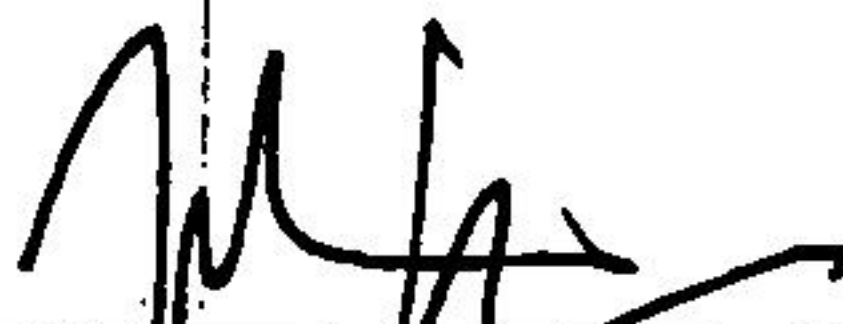
FEB-21-08 13:18 FROM-010

3038665395

T-723 P.004/004 F-397

APPROVED AS TO FORM:

JOSHUA MAXIMON, ESQ.

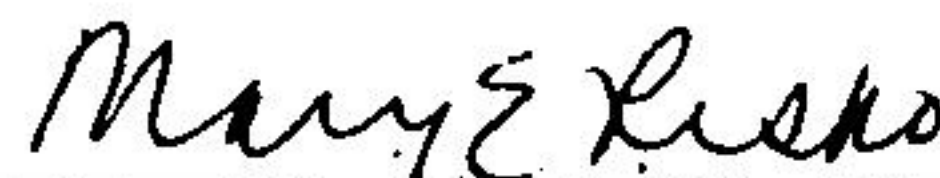


Joshua Maximon, Esq.
Attorney for Respondent

12202 Airport Way, Suite 170
Broomfield, CO 80021

Telephone: (303) 991-3344
FAX: (303) 991-1895

JOHN W. SUTHERS
Attorney General



MARY E. RISKO, #9926
Assistant Attorney General
Business & Licensing Section

Attorneys for the Colorado State Board of
Licensed Professional Counselor Examiners

1525 Sherman Street, 5th Floor
Denver, Colorado 80203
Telephone: (303) 866-5275
FAX: (303) 866-5395
*Counsel of Record